

NRI Power of Attorney (POA) Adjudication Guide

This document provides a practical checklist and overview for Non-Resident Indians (NRIs) regarding Power of Attorney (POA) adjudication, stamp duty compliance, and legal validation in India. Procedures and fees may vary by state and jurisdiction.

1. What is POA Adjudication?

- Adjudication is the legal process of verifying and validating a Power of Attorney executed outside India.
- It confirms payment of applicable stamp duty under the Indian Stamp Act or relevant state laws.
- The adjudicated POA becomes legally acceptable for property, banking, and legal transactions in India.

2. Documents Required

- Original Power of Attorney document signed by the NRI.
- Passport copy of the executant (NRI).
- Visa / OCI / Resident permit copy.
- Proof of overseas address.
- Passport-size photographs (if required).
- PAN card copy (recommended for financial/property matters).
- Proof of relationship (if POA is issued to family members).
- Supporting property documents (if property-related POA).

3. Execution of POA Outside India

- Draft the POA carefully with specific powers mentioned.
- Sign the POA before the Indian Embassy/Consulate or a local Notary Public.
- Ensure signatures and witness details are complete.
- Consular attestation is strongly recommended for smooth acceptance in India.

4. Adjudication Process in India

- Courier the original attested POA to India.
- Submit the POA before the local Sub-Registrar or Collector of Stamps.
- Pay applicable stamp duty.
- Provide identity and address proof of the attorney holder.
- Receive adjudication endorsement/seal after verification.

5. Stamp Duty Compliance

- Stamp duty varies depending on the Indian state and type of POA.
- Property-related POAs generally attract higher stamp duty.

- Family-member POAs may receive concessional rates in certain states.
- Delayed adjudication may attract penalties.

6. Typical Timeframe

- Consulate attestation: Same day to a few business days.
- Courier to India: 3–10 days depending on service.
- Adjudication in India: Usually 1–15 working days.

7. Common Mistakes to Avoid

- Using unsigned or incomplete POA documents.
- Failure to notarize or attest overseas.
- Incorrect names or passport details.
- Missing witness signatures.
- Not paying applicable stamp duty within prescribed timelines.

8. Practical Tips

- Use a lawyer-reviewed draft for property transactions.
- Keep scanned copies of all documents.
- Verify state-specific stamp duty rules before submission.
- Track courier and acknowledgment records.

Quick Reference Checklist

Requirement	Status
POA Draft Prepared	■
Passport Copy Attached	■
Visa / OCI Copy Attached	■
Embassy / Notary Attestation Completed	■
Courier Sent to India	■
Stamp Duty Paid	■
Adjudication Completed	■

Disclaimer: This guide is for informational purposes only and does not constitute legal advice. Stamp duty rules, adjudication procedures, and document requirements differ across Indian states. Consult a qualified legal professional or local registrar office for transaction-specific guidance.